

DISSENTING OPINION BY M. ALTAMIRA.

[*Translation.*]

I regret that I am unable to agree with the foregoing judgment. I therefore consider it my duty both to the Court and to my conscience to state the reasons which prevent me from subscribing not only to the operative part but also to several of the grounds on which it is based.

I.

It is certain that amongst the most widely recognized principles of international law are the principles that the jurisdiction of a State is territorial in character and that in respect of its nationals a State has preferential, if not sole jurisdiction. It is also certain that, arising out of the very natural combination of these two principles, persistent and well known efforts have been made to extend their field of application beyond the purely geographical conception of territorial limits, by causing them as it were to accompany, as a protecting shadow, the persons of a State's nationals on their travels, in so far as has been possible under the material conditions of international intercourse.

Therefore, exceptions to these principles, in so far as they allow a foreign jurisdiction to be exercised over the citizens of a given State, have only been recognized in extreme cases where it has been absolutely necessary or inevitable. This applies for instance to the case of a general need of mankind or of a common danger (the slave trade, piracy, etc.), and also to the want of conformity with the territorial principle itself which would ensue were the jurisdiction of other States not allowed to operate in the case of foreigners who having entered the territory of such States in order to reside there for a certain period and carry on their occupations there, commit acts bringing them within the arm of the law. But directly one of these fundamental reasons fails to apply, the principle of the territorial jurisdiction of the country of origin recovers its force. That is why I should have much difficulty in recognizing as well founded an attempt for instance on the part of a court, on the basis of a municipal law, to exercise jurisdiction over a foreigner, who resided

on board a vessel flying the flag of his own country and did not land with the intention of remaining ashore, and that for an alleged offence committed outside the territory of the country which claimed to exercise jurisdiction over him. Such an extension of the exceptions hitherto accepted in respect of the principle of territorial and national jurisdiction appears to me to be altogether unwarranted.

There can be no doubt that exceptions of this nature must necessarily be exceptions recognized by international law, that is to say, they must have their origin in relations between sovereign States, either in the form of a treaty or of international custom. It is not without interest to observe here that a custom must by its nature be positive in character and that consequently it is impossible to classify as a custom the fact that in a certain respect there is a total absence of the recurrence of more or less numerous precedents which are generally regarded as necessary to establish a custom. The rule which it is desired to discover must be positively supported by the acts which have occurred, and, of course, as regards international law these acts must also be international in character.

It follows that the municipal legislation of different countries, as it does not by its nature belong to the domain of international law, is not capable of creating an international custom, still less a law. Of course it may touch and in fact does in several respects touch upon legal questions which affect or may affect other States or foreign subjects, and thus it encroaches upon a domain which is practically speaking international. But it cannot simply on this ground be held to possess a character placing it on the same plane as conventions or international customs.

It may however be of considerable value in showing what in actual fact is the opinion of States as concerns certain international questions in regard to which States have not yet committed themselves by means of a convention prohibiting them from enacting a municipal law in conflict with the obligation assumed, or in regard to which no custom recognized by States has so far been built up. It is only in this way that it is legitimate to use municipal legislation and to apply it for the purposes of a question like that under consideration. It is of no value for any other purpose in connection with international law,—unless it has been duly ascertained that general agreement prevails,—because it only expresses the wish or

intention of one State in the form of a municipal rule representing the opinion of a greater or smaller majority of the political community constituting a nation. For these reasons it is of particular interest to ascertain whether,—in cases where it has been sought, contrary to a general principle of international law not established by convention or custom, to impose such legislation in concrete form upon other States,—the attempt, whether simply intended or actually carried out, has encountered consent or protest on the part of the consensus of opinion in the country affected. Leaving aside all difficulties of this kind which are so general in character as to be too remote from the category of questions to which the collision case under consideration belongs and which would therefore be of little value as a basis for the solution of the particular question before us, I will begin by saying that, within the limits of the precedents considered by the Parties, what I find in general is either that there has been protest against the exercise of any jurisdiction other than that of the nation of the person alleged to be responsible or of the flag under which he sails, or else that this principle of the flag has been applied.

An analysis of these precedents produces the following result :

I. *Cases where governments as such have protested.*

1. Cutting's case.—2. *Léon XIII.*

II. *Cases where the protest has been made by the local courts or authorities of the State of the person convicted.*

1. *Ortigia—Oncle-Joseph.*—2. *Hamburg.*

III. *Cases where a State, through either its government or a tribunal, has recognized in the particular case the prior claim of the jurisdiction of the flag of another State.*

1. *Costa Rica Packet.*—2. *Franconia.*—3. *Créole.*—4. The Bordeaux judgment.—5. The Santiago de Chile judgment.—6. The judgment of the Court of Appeal of Turin (1903).

In spite of the differences in character which these ten cases present from other points of view, it will be found that they all agree in that they invoke, or recognize (which is the same thing), the prior or exclusive claim of the law of the flag as regards certain acts done on board a ship. It is only for this reason that they are cited here ; and the very diversity of the questions of jurisdiction

which they concern only serves to affirm the importance of the principle which unites them. There are certainly cases with a contrary tendency such as the Bruges or *West-Hinder* case, but of all those cited the majority are certainly in favour of the principle indicated above.

It must also be admitted that there are only two cases where governments themselves have protested ; but I do not see that it is necessary, for the purposes of the present question, that governments should always be the mouthpiece for the expression of a legal opinion prevailing in a country. The small number of protests by governments can in my opinion be easily explained. It is due firstly to the infrequency of the occasions on which encroachments upon jurisdiction have actually occurred, judging from the cases known and cited by the Parties. It is due above all to the frequency with which governments (and especially those of some countries) have shown themselves insensible to the injury sustained by their subjects as a result of occurrences abroad. Almost every country has a long and unhappy experience in this connection. Either from indolence or from anxiety to avoid diplomatic complications or for other reasons, political rather than legal, governments often refrain from openly protecting their subjects and only make up their minds to do so when things have developed into a public scandal, or when the injured persons have made great and persistent efforts to attract the attention of political circles in their country. Failing such intervention by governments, sometimes municipal courts have intervened and certainly no one will refuse to recognize these as officially representing the legal opinion of their country.

Again, some of the cases cited under No. III, though in a form other than that of a protest for which there was no occasion, have the same essential significance as those set out under No. I.

In view of the foregoing, I have a very strong hesitation to admit, as a matter of course, and as subject to no doubt, exceptions to the territorial principle (in the application of that principle to the present case), exceptions which it is sought, simply by the will of one State, to extend beyond the limits of those hitherto expressly agreed to in conventions, or tacitly established by means of the recurrence of certain clearly defined and undisputed cases in the majority of systems of municipal law.

In regard to criminal law in general, it is easy to observe that in municipal law, with the exception of that of a very small number of States, jurisdiction over foreigners for offences committed abroad has always been very limited: It has either (1) been confined to certain categories of offences; or (2) been limited, when the scope of the exception has been wider, by special conditions under which jurisdiction must be exercised and which very much limit its effects. It is but seldom that, on this hypothesis, jurisdiction over foreigners in respect of offences committed abroad is claimed in general terms without even formal limits or with limits such as that represented by a minimum penalty, which only very remotely correspond to the question of jurisdiction arising under international law.

As regards the categories of disputes contemplated by the exceptions and to which I alluded just now, it may readily be observed that for the most part these comprise offences against the State itself. Again, it seems to me that even when an exception to the territorial principle has been extended to cover offences against individuals by application of the principle of the protection of nationals (which is the principle which is most likely to come into conflict with the territorial principle), the municipal legislation in question has been visibly designed to cover offences properly so-called—i.e. those in which evil intent and perversity constitute the outstanding characteristic—and especially more serious offences constituting *crimes* (as regards offences of violence), as well as certain offences of a financial character in which the circumstances characteristic of the category of offences producing their effects at a distance (*délits à distance*) are present. I cannot believe that the legislations of which I am now speaking have ever been really intended to apply to every kind of offence, even the smallest and most unintentional.

I fully realize that a limit as regards the seriousness of offences has been fixed in the case of some of the most advanced legislations, by means of stating the minimum penalty applicable to the offences contemplated. But it is very rare to find in such legislations at the same time a limit fixing the lowest penalty applicable and a complete absence of conditions of form, such as default of extradition or need for a special order from the Head of the State

or other similar conditions. In other words, even in the case of the most far-reaching legislations as regards the extension of jurisdiction to foreigners for offences committed abroad, the States concerned have not ventured in most cases simply to formulate their claim without limiting its scope in any way.

I have prepared a table of the municipal legislation of a number of countries which, subject to the existence of unnoticed errors, would be as follows :

I. *Legislation in general terms of wide scope.*

1. Italy.—2. Turkey.—3. China.—4. Mexico. It is to be noticed that the terms used in these four cases are not equally stringent. Apart from other differences which might be mentioned, there are differences as regards the minimum penalty necessary to bring jurisdiction into play.

To the four cases above mentioned might perhaps be added the legislation of Brazil and Uruguay, subject to certain questions of interpretation raised by the terms used, which there is no object in discussing for the moment. The German draft of 1913, like the laws of the four countries above mentioned, employs general terms of wide scope.

II. *Legislation defining the categories of offences in the case of which jurisdiction is to be exercised over foreigners for offences against individuals committed abroad.*

1. Argentine, Article 25. The wording appears comprehensive but in reality there is a very definite limitation.—2. Belgium.—3. Japan.

III. *Legislation making the possibility of prosecution dependent on certain conditions which limit its application.*

(a) The offence to be one for which extradition may be demanded :
1. Switzerland.—2. Sweden (draft).—3. The Lima Proposals.

(b) The prosecution of the offence in question to be ordered by the Head of the State or by law : 1. Finland.—2. Norway.—3. Sweden (law in force).—4. Germany (as regards contraventions).—5. Austria (draft).

(c) Extradition to have been asked for but refused (that is to say, it must have been possible) : Bulgaria (the minimum penalty under Bulgarian legislation is imprisonment).

IV. *Legislation very vague in its terms.*

Germany (draft proposal) ; § 6 contains the apparently conditional phrase "may be prosecuted".

V. *Legislation not conferring jurisdiction over offences against individuals.*

1. Germany (as regards crimes and offences as opposed to simple contraventions).—2. United States.—3. Spain.—4. France.—5. Great Britain.—6. Netherlands.—7. Paraguay.—8. Dominican Republic.—9. Siam.

To these Denmark might be added, subject to the interpretation of the phrase "port of register" (*port d'attache*) in § 3. Also Egypt, subject to the interpretation of Rule 4. I have not included in this list the legislation of Soviet Russia or Monaco or the Polish draft proposals because the classification of these in one of the above five groups is, in my opinion, very much open to doubt and because with the information available to us it would be rash to come to any conclusion concerning them.

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The examples considered—both those belonging to international law and those which, whilst being derived from municipal law, relate to situations concerning foreigners and acts committed abroad—tend to show the existence of a predominant conception and intention in this field of criminal law which concerns cases of an international character. This conception and intention are undoubtedly opposed to simply allowing the application of municipal law which, by claiming too wide a scope, comes in conflict with the territorial principle which protects the rights of the citizens of each State, and seeks to go much further than the exceptions held to be acceptable by the majority of States.

Of course, every sovereign State may by virtue of its sovereignty legislate as it wishes within the limits of its own territory ; but

it cannot, according to sound principles of law, in so doing impose its laws upon foreigners in every case and without making any distinction between the various possible circumstances as regards the place where the offence has been committed, the nature and seriousness of the offence, the special conditions under which a foreigner may happen at a given moment to be within reach of the authorities of a foreign country on the territory of which the offence of which he has been accused was not committed, and other conditions besides.

II.

But even admitting hypothetically the absence of a principle of international law express or implied, which would have been infringed by the manner in which the Turkish authorities acted as regards Lieutenant Demons, I am unable to discover any grounds for altering my view. And the following is the reason.

The contention of those who held the contrary view—which we are now going to examine—may, if I am not mistaken, be summarized as follows: Since no principle exists establishing the exclusive criminal jurisdiction of the law of the flag in cases of collision upon the high seas, we are faced with two concurrent jurisdictions. Consequently, each of these jurisdictions may take effect within the limits of its natural sphere of operation—namely within its own territorial area—upon foreigners who are there and may also therefore apply to them such municipal law as each State may have adopted by virtue of that freedom which no other principle of international law prevents them from exercising in this respect.

It is not irrelevant to remark in passing that all or almost all principles of international law have the common characteristic of not being invariably exclusive in character. There is no more reason for mentioning or considering this characteristic in reasoning in relation to the principle of territoriality or of the flag than in relation to the principle of protection. If one accepts, as is necessary, the exceptions to the first two, it must also be admitted that the third, like all such principles, must have exceptions and must undergo restrictions in its competition with the others. Consequently the fact that, generally speaking, a principle is not exclusive in character does not involve the consequence that it can never be so when confronted by another principle, and still less in relation to a municipal law.

But, to return to the exception which has been suggested to the principle of the flag—which is only another aspect of the principle of territoriality—the question must be put whether it can come into play in the case now before the Court in the way indicated above according to the view I am discussing. I do not think so. In my opinion, the freedom which, according to the argument put forward, every State enjoys to impose its own laws relating to jurisdiction upon foreigners is and must be subject to limitations. In the case of competing claims to jurisdiction such as those in question (according to those who recognize the existence of such competition), this freedom is conditioned by the existence of the express or tacit consent of other States and particularly of the foreign State directly interested. As soon as these States protest, the above-mentioned freedom ceases to exist, and, subject to the result of the investigation of the dispute which has so arisen, any acts which were done in pursuance of such freedom lose the legal basis which they might otherwise have possessed. It is impossible to create an international custom, or to presume the existence of any rule in favour of the unlimited freedom of each legislation as regards foreigners, and binding on all other States, except within the same limits and subject to the same conditions as any other international rule or custom. The necessity for consent is just as much a fundamental principle of international law, which is entirely based on the will of States, as the principle of the protection of nationals or of the freedom to legislate internally. Consequently, the consent of the interested State must be requisite in every case belonging to the category I am now considering and *a fortiori*, its express dissent must be taken into account. If, as in the present case, the latter alternative takes place, the competition in the claims to jurisdiction cannot legitimately have the effect of favouring a claim which has been protested against and which, moreover, would not be in harmony with the preponderating opinion of most States in regard to the kind of cases contemplated according to what has been shown above. To accept the contrary view would, in my opinion, be to neglect one of the fundamental conditions of the international community and would result in opening the door to continual conflicts which might involve most undesirable consequences.

Such a result being, in my opinion, inadmissible from the point of view of international law and of its essential aims which are the

establishment of reciprocal good relations between States, the causes which would produce that result cannot be sanctioned. Any decision leading to the establishment of a system of unrestricted freedom in States which would lead to the consequences I have just outlined, would therefore be very serious. Even where a very circumscribed and particular case was concerned, there would, in such a conclusion, be a risk of giving rise almost inevitably to dangerous constructions and applications. In spite of all the provisos that might be added, it would be very difficult, I think, in view of the shifting ground upon which the case rests, to prevent the decision being construed in a manner going beyond its underlying intention.

For all these reasons, I am led to conclude that a State which, under the circumstances of the *Lotus* case, acts so as to impose, by virtue of the principle of the admitted freedom in internal legislation, and in disregard of the principle whereby consent is requisite, further exceptions to another principle, in this particular case the principle of territoriality, will have acted in contravention of international law.

III

Outside the particular sphere of this law, but still within the sphere of human rights (the law of Nature), I find other grounds for being unable to accept the sanctioning of the rule of absolute freedom. These grounds are derived from what, in my opinion, constitutes the basis of the whole social legal system: respect for the rights of the individual. This respect takes precedence of everything else. If it is absent, everything else falls to the ground and ceases to have any juristic foundation. Now, it is undoubtedly true that a failure to respect such rights takes place in many cases through the fact of constraint being imposed upon a man, particularly if he is not a criminal, to submit to the effects of laws which are not those of the community to which he belongs, of laws which he does not know and which are applied in his case by entirely foreign judges by whom he cannot make himself understood, except, in the most favourable conditions, through a third person, because he does not know their language, their legal mentality, the forms of procedure they employ, etc.

In all periods of history, men have considered the application of their own laws and of their own national procedure and the submission of their judicial affairs to judges speaking their own language and having their own nationality, to be just as important a pledge of their rights as is in quite another respect the due appreciation of the particular circumstances surrounding the facts under consideration, which very often lead to the mitigation of the punishment prescribed in principle. Those who belong to nations in which more than one language is spoken and in which more than one legal system is recognized as valid by the courts, are well aware of the great weight which is sometimes attached to the fact that they are amenable to one court rather than to another. On many occasions this subject has been amongst the most pressing claims of the various regions and groups of the complex population of the countries to which I refer.

It goes without saying that I do not mean to allude, as I have already said, to cases in which an individual has voluntarily changed his residence in order to go to a country other than his own with the intention of remaining there for a more or less protracted period, in full knowledge of the fact that this action will have the effect of subjecting a great number of his actions to a new law. Nor, again, do I refer to the cases comprised within the clearly recognized exceptions to the principle of territoriality, which are well founded upon the requirements of public order and justice. But I am unable conscientiously to accept or to lend my support to any action leading to the acceptance of a constraint of the kind described a little earlier, and in which Lieutenant Demons' case is included. And do not let us forget that the question before us is not that of the punishment of an offence which a collision might result in, but that of the competence of the Turkish tribunal to hear the case, that is to say, a question relating to jurisdiction. We have not to solve the problem of the necessity at law for a more or less severe punishment of the material results of an involuntary collision, nor the difference in this respect between the offence, considered subjectively, and its consequences as regards other persons or other things, but purely a problem of determining jurisdiction in accordance with the fundamental principles of international law.

In the same order of thought but from another point of view, I find equally menacing to the rights of man the claim to apply

the same rules as might be fair in the case of most true offences, to an involuntary offence even if its injurious effects went so far as to cause the death of a man. The incompatibility of such application with the rights to which I have just referred is still greater when the alleged act arises from a mistake, which, as is frequently the case in collisions, has not perhaps been committed by a single person on board one of the vessels, but by different persons on board both ships in collision. What I am unable to accept in this case is the application of jurisdictional rights which would result in the jurisdictional constraint which I have described. In my view international law in order to be real *law* must not be in contradiction with the fundamental principles of legal order, one of which necessarily is the rights of man taken as a whole. I am convinced that every time that a result of this nature is reached, one is faced with something wanting in regularity, which should be rejected.

IV.

Before concluding, I should like to bring forward some considerations which deal with a very important matter as regards the functions of the Court. I am convinced that the problem of the exceptions to the principle of territoriality in regard to criminal jurisdiction in collision cases as it stands at present—particularly in regard to collisions with no criminal intent—offers a sufficient number of elements to enable one to conclude that to act in the manner in which the Turkish authorities have done in the *Lotus* case is contrary to the intention underlying the exceptions to this principle which have been agreed to, or which the majority of States would apparently be ready to agree to. But even if the question were raised of the necessity for a definitely specific custom and of the stage of development reached by the custom which might be considered necessary in the present connection, I would point out that the conditions particular to the general process of the development of a customary rule must be borne in mind. Often in this process there are moments in time in which the rule, implicitly discernible, has not as yet taken shape in the eyes of the world, but is so forcibly suggested by precedents that it would be rendering good service to the cause of justice and law to assist its

appearance in a form in which it will have all the force rightly belonging to rules of positive law appertaining to that category.

Perhaps the present case offers such a moment and, at the same time, an opportunity which it would be regrettable to lose. But I do not think it is necessary to lay stress on this side of the question, in view of the conclusion at which I have arrived on the particular grounds on which the question submitted to the Court is based. I will confine myself to pointing it out as a method which in my opinion might lead by another path to the same result which has induced me to dissent from the judgment given by the Court.
